

demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Here, Defendant's Notice of Motion indicates they are moving for an order dismissing Plaintiff's claim for meal break violations and PAGA claim pursuant to California Code of Civil Procedure, Rule 12(b), or, in the alternative, strike portions of Plaintiff's Complaint. The Notice does not indicate which portions, in violation of CRC 3.1322. There is no CCP Rule 12(b). The moving papers indicate that Defendant moves to stay the instant action pursuant to CCP § 430.10(c). Defendant argues that Case No. 2:24-cv-02751-TLN-DMC (the "related case"), currently pending in the Eastern District of California is "another action pending between the same parties on the same cause of action," which requires this Court to stay the instant PAGA action.

The Court takes judicial notice that the related case is a class action. It does not assert any PAGA claims. California case law is clear that a class action and a PAGA action involve different claims for different harms, and different parties. *Howitson v. Evans Hotels, LLC* (2022) 81 Cal. App. 5th 475, 482. California courts have repeatedly held that applying claim preclusion under these circumstances would undermine the Legislature's intent. *See, e.g., Id.* at 492. The demurrer on the grounds of CCP § 430.10(c) is **OVERRULED**.

The moving papers next argue that, should the Court decide not to stay the action, it must dismiss Plaintiff's meal period claims under the principals of federal labor law preemption. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal.App.3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b). Defendant fails to identify which portions of the Second Amended Complaint it seeks to strike. The Court infers Defendant seeks to strike paragraph 17. This argument is based on Defendant's reading of a Collective Bargaining Agreement between Defendant and Plaintiff's representative Teamsters Local 137. The Court declines to take judicial notice of the CBA, or to interpret its meaning or applicability at the pleading stage. The motion to strike is **DENIED**.

Defendant's Demurrer is OVERRULED, the alternative Motion to Strike is DENIED. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Relief under CCP § 473(b): This is a lemon law action concerning a 2020 Honda Pilot. Plaintiffs seek relief, pursuant to CCP § 473(b), from this Court's March 3, 2025 Order denying the Motion to Compel the Deposition of Defendant's Person Most Knowledgeable ("PMK") for all categories requested in their Second Amended PMK Deposition Notice.

Relief under 473(b) is discretionary here. "The mandatory relief provision of section 473(b) provides, as pertinent, "Notwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake,

inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting *default judgment or dismissal* entered against his or her client....” (Italics added.) In contrast, the discretionary relief provision of section 473(b) states, as relevant, “The court *may*, upon any terms as may be just, relieve a party or his or her legal representative from a *judgment, dismissal, order, or other proceeding taken against him* or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Italics added.)” *Noceti v. Whorton* (2014) 224 Cal. App. 4th 1062, 1065.

Plaintiff’s Motion to Compel Deposition originally came on for hearing on January 27, 2025. The Court’s tentative ruling was to deny the Motion for failure to meet and confer. Plaintiff appeared at the hearing and requested a continuance to permit meet and confer efforts. The Court granted that request and continued the hearing to February 24, 2025. The Court thereafter continued the hearing to March 3, 2025 on its own motion due to congested calendars. Both sides were directed to file any supplemental declarations five court days prior to the continued hearing date. Plaintiff failed to file any supplemental declaration. The matter came back on calendar for hearing on March 3, 2025. The Court’s tentative ruling was again to deny the Motion for failure to meet and confer. Plaintiff did not appear at the hearing, and the tentative ruling was adopted as the formal order of the Court. That Order detailed the basis for the Court’s decision, as follows:

A motion brought under CCP § 2025.450(a) shall be accompanied by a meet and confer declaration under CCP § 2016.040. The Declaration of Hannah Theophil indicates that one meet and confer letter was sent to Defendants on August 1, 2024, relating to the Notice of Deposition for PMK served on September 11, 2023. (Ex. 7 to Decl. Theophil.) However, the instant Motion relates to a Second Amended Notice of Deposition, served on November 15, 2024. There is no evidence of meet and confer efforts related to the Notice at issue here. Moreover, Defendants served Objections to the Second Amended Notice of Deposition on November 22, 2024. (Ex. 10 to Decl. Theophil.) In the 384-page Declaration and Exhibits filed in support of this Motion, there does not appear to be any evidence that Plaintiffs attempted to meet and confer to address Defendant’s Objections, or to determine a mutually agreeable date for deposition.

A party may move for an order compelling a deponent’s attendance and testimony, if, after service of a deposition notice, a party to the action without having served a valid objection fails to appear for examination or proceed with it. CCP 2025.450(a). Here, Defendants served objections that have not been challenged by Plaintiff. Plaintiff has not met and conferred in good faith. The Court granted a continuance from January 27, 2025 at Plaintiff’s request to permit meet and confer efforts. Plaintiff was ordered to file a supplemental declaration no later than five Court days prior to today’s hearing. Plaintiff failed to do so.

The Court did not base its ruling on Plaintiff’s failure to appear at the hearing on March 3, 2025, but rather on Plaintiff’s failure to satisfy the meet and confer requirements of CCP § 2025.450, despite the Court granting a continuance at Plaintiff’s request to permit Plaintiff to satisfy that requirement. Plaintiff’s instant Motion for Relief pursuant to 473(b) is made on the grounds that counsel failed to appear at the hearing on March 3, 2025 due to a calendaring error, constituting

attorney mistake, inadvertence, or excusable neglect. Plaintiff's failure to appear at the hearing did not affect the Court's evaluation of the merits of the Motion. The Court declines to exercise its discretion to provide relief under 473(b). The Motion is **DENIED**. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

NATIONAL COLLEGIATE STUDENT LOAN TRUST 2007-3 VS. SHEPHERD

Case Number: 24CVG-00826

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and Counsel, on March 7, 2025, for failure to timely serve as required by California Rule of Court 3.110, and for failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to serve and file the MSC statement, the Court will impose sanctions in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve in violation of CRC 3.110 and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. The May 13, 2025 trial date is **VACATED**.

PEREZ VS. MAXIMUS TREE WORKS LLC, ET AL.

Case Number: 24CV-0205260

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on March 7, 2025, to Plaintiff and Counsel for failure to timely seek entry of default/default judgment as required by California Rule of Court 3.110 and failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. Plaintiff has submitted a Declaration in response to the OSC which adequately addresses these failures. The OSC is **DISHCHARGED**. No sanctions will be imposed.

Upon review of the file, the Court notes that its August 27, 2024 Order authorizing service of process on the California Secretary of State, imposes an additional condition that has not been met. Plaintiff must file a proof of service (of summons, complaint, and the Court's August 27, 2024 Order) by mail at the addresses of attempted service set forth in the application on file. There is no proof of service on file for Defendant Saul Ruiz. The Court also notes that a First Amended Complaint was filed April 15, 2025. This matter is not at issue. The trial set for May 13, 2025 is **VACATED**. This matter is set for review regarding status of service on **Monday, June 2, 2025 at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Dallas Segall, in pro per, on February 4, 2025, for failure to appear on January 21, 2025, as ordered on November 25, 2024. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to appear and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m.**